

and non-confidential information. Parties must endeavor to define words reasonably, and respond with reasonable definitions of there is vagueness.

Conclusion

Because, pursuant to Code of Civil Procedure section 871.26, this case has not yet mediated properly, Plaintiff's Motion is **denied**.³

19. 9:01 AM CASE NUMBER: C25-00992

CASE NAME: STEVEN NEIL VS. FORD MOTOR COMPANY

***HEARING ON MOTION FOR DISCOVERY TO COMPEL DEFENDANTS FURTHER RESPONSES TO PLAINTIFFS FORM INTERROGATORIES, SET ONE**

FILED BY: NEIL, STEVEN D.

TENTATIVE RULING:

Plaintiff Steven Neil brings this Motion to Compel Further Responses to Form Interrogatories, Set One. Defendant Ford Motor Company opposes, primarily on procedural grounds, although additionally on some substantive grounds.

Neil served discovery on _____. Ford Motor Company responded on ___, primarily with objections—many of which were boilerplate. Ford also objected that the discovery was premature, as Neil been on telephonic availability at the mediation, and Ford believed that did not satisfy Code of Civil Procedure section 871.26. On January 16, 2026, Neil sent a letter outlining the reasons he believed Ford's responses were unsatisfactory and improper. Ford responded on January 23, 2026, indicating that the objections were proper, but also stating that because Neil had not attended the mediation, the case was not ripe for discovery, per the Code. Without further discussion, Neil filed this Motion on March 2, 2026.

CCP 871.26

Neil argues that he complied with Code of Civil Procedure section 871.26(d)(2) because he was available by telephone. That section requires "The plaintiff and a person with settlement authority for the manufacturer shall attend the mediation in person or by remote means." Attending mediation is more than just being on telephone standby. Mediation consists of more than receiving a settlement offer and responding to it; mediation is a facilitated conversation about a case with a neutral. If all that was required was telephonic availability, then the statute would require only settlement discussions rather than an actual mediation. Moreover, it is not as if Mr. Neil was on and off the telephone. The mediator stated that he *did not participate*. Plaintiff has failed to comply with the statute and therefore the mediation has not concluded and section 871.26(e) has not been triggered.⁴

³ The Court adds one more observation, which is that Ford cited two superior court cases in its opposition. One is explicitly unpublished. The other does not state, but it is not in a reporter. California Rule of Court 8.1115 prohibits citation of unpublished cases, and the Court will admonish counsel not to repeat this error.

⁴ It is of no moment that Ford has not responded to Neil's demand. Ford also indicates Neil has not responded to its offer. This discussion would have been facilitated *by a mediation*; moreover, as stated above, it is not a settlement discussion that the legislature has required but rather a mediation attended by individuals with knowledge and authority.

Meet and Confer

Although the Court need not go any further, we will pause briefly to note that the meet and confer process was also incomplete. Again, the legislature does not require meeting and conferring so that parties can spend time and postage (or internet bandwidth) merely sending a missive in each direction without actually communicating. The legislature requires meeting and conferring so that the parties do not waste their own time and resources and that of the courts in bringing unripe motions or motions that could be resolved by a meeting of the minds. While the Discovery Act does not explicitly require verbal communications, it is rarely a bad idea for attorneys to pick up the phone or the equivalent and speak about the issues. Once discovery is triggered by the completion of mediation, there is some considerable conversation that these parties need to have about what is reasonable, necessary, and appropriate. Plaintiff cannot serve massively overbroad demands in the hopes that there is a needle in a haystack; nor can Defendant pretend that a discovery request that overlaps with privileged and confidential information is therefore unanswerable with non-privileged and non-confidential information. Parties must endeavor to define words reasonably, and respond with reasonable definitions of there is vagueness.

Conclusion

Because, pursuant to Code of Civil Procedure section 871.26, this case has not yet mediated properly, Plaintiff's Motion is **denied**.

Law & Motion

Add On

20. 9:00 AM CASE NUMBER: C23-02528

CASE NAME: FLUENCE ENERGY, LLC VS. DIABLO ENERGY STORAGE, LLC

***HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION ATTENDANCE OF DEFENDANT'S PERSON(S) MOST QUALIFIED**

FILED BY: FLUENCE ENERGY, LLC

TENTATIVE RULING:

Plaintiff Fluence Energy LLC brings this Motion to Compel Deposition Attendance of Defendant's Person(s) Most Qualified and to Produce Documents; Request for Sanctions against Defendant Diablo Energy Storage LLC. Due to a court calendaring error, the Court has had to prepare for this motion on an expedited basis, so this tentative ruling will be more summary than it otherwise may have been. (The Court has been able to review all materials on an expedited basis.)

Fluence served a deposition notice for Diablo's Person Most Qualified with 29 topics. At this time, there appear to be 16 topics at dispute. The areas are topic numbers 1, 4, 5, 6, 7, 11, 14, 16 (except for activities with related to the preparation of the Emergency Response Plan in support of Fluence's submissions to the Fire Department), 17, 18, 19, 20, 22, 23, 28, and 29.